

Original form provided free of Charge by CO DOC Legal Services to

Offender Mackey DOC# 82262

Date JAN 17 2017

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

FILED

UNITED STATES DISTRICT COURT
DENVER, COLORADO

JUN 02 2017

JEFFREY P. COLWELL
CLERK

Civil Action No. 17-cv-1341
(To be supplied by the court)

WALDO MACKEY, Plaintiff,

v.

LEONARD E. WOODSON III,

DANA KRAKOW,

RICK RAEMISH,

MARY HACKLER,

CHERLY GILLIS,

BRIDGETTE WATSON,

SUSAN PRIETO,

_____, Defendant(s).

(List each named defendant on a separate line.)

PRISONER COMPLAINT

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A. PARTIES

1. Waldo Mackey, 82262, Fremont Correctional Facility, P.O. Box 999
(Plaintiff's name, prisoner identification number, and complete mailing address)
Canon City, Co 81215-999

2. Leonard E. Woodson III, SOTMP Administrator, CDOC, 1250 Academy Park
(Name, title, and address of first defendant)
Loop, Colorado Springs, Co 80910

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No (CHECK ONE). Briefly explain your answer:

Mr. Woodson prevented me from enrolling in the SOTMP even though I
have been waiting for years to enter and constantly moved inmates up
on this list ahead of me because they were convicted pursuant to a statue.

3. Dana Krakow, MA, LPC, NCC Program Coordinator, P.O. Box 999, Canon
(Name, title, and address of second defendant)
City, Co 81215.

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No (CHECK ONE). Briefly explain your answer:

Ms. krakow granted my grievance to attend SOTMP but recy-
cled me back to the waitlist that I have been on for years
pursuant to AR 700-19 that doesn't apply to me .

4. Mary Hackler, Case Manager, address (unknown) CDOC, 1250 Academy Park
(Name, title, and address of third defendant)
Loop, Colorado Springs, Co 80910

At the time the claim(s) alleged in this complaint arose, was this defendant acting under color of state law? ☒ Yes ☐ No (CHECK ONE). Briefly explain your answer:

Ms. Hackler denied me Due Process right to participate in the classi-
classification process and denied my first Amendment right to free
speech in defense of myself, which was approved by Associate Warden.

(If you are suing more than three defendants, use extra paper to provide the information requested above for each additional defendant. The information about additional defendants should be labeled "A. PARTIES.")

A. PARTIES CONT...

5. Cherly Gillis, Case Manager, Fremont Correctional Facility, P.O. Box 999; East US Highway 50 and Evans Blvd., Canon City, Co 81212.

This Defendant refused to reclassify Plaintiff pursuant to remedy of an appeal, by Order of the Associate Warden, J. McCall, and refused to file a parole plan that Plaintiff could participate in, and notifying him of the parole hearing, thereby denying Due Process and Equal Protection.

6. Rick Raemisch, is the Executive Director of the Colorado Department of Corrections; address: Colorado Department of Corrections, 1250 Academy Park Loop, Colorado Springs, Co 80910.

Mr. Raemisch's practice/policies denies Due Process to Plaintiff and others similarly situated like him in the Administrative Regulation 700-19, to deny entry into the Sex Offender Treatment Monitoring Program.

7. Sergeant Bridgett Watson, of Cell House 8, Fremont Correctional Facility, P.O. Box 999; East US Highway 50 and Evans Blvd., Canon City, Co 81212.

This Defendant retaliated and harassed Plaintiff and put him, inmate's Fogland and Justin Tyme in imminent danger by pitting Plaintiff and Tyme against Fogland.

8. Lieutenant Susan Prieto, Hearing Officer, Fremont Correctional Facility, P.O. Box 999; East US Highway 50 and Evans Blvd., Canon City, Co 81212.

This Defendant denied Due Process by refusing to let Plaintiff present evidence and witnesses on his behalf.

CAPACITIES

2. Leonard E. Woodson is being sued in his individual capacity.
3. Dana Krakow is being sued in her individual capacity.
4. Mary Hackler is being sued in her individual capacity.
5. Cherly Gillis is being sued in her individual capacity.
6. Rick Raemisch is being sued in his official capacity.
7. Sgt. Watson is being sued in her individual capacity.
8. Susan Prieto is being sued in her individual capacity.

At the time these Complaints arose, the Defendants were acting under color of state law.

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B. JURISDICTION

1. I assert jurisdiction over my civil rights claim(s) pursuant to: (check one if applicable)

☒ 28 U.S.C. § 1343 and 42 U.S.C. § 1983 (state prisoners)

☐ 28 U.S.C. § 1331 and *Bivens v. Six Unknown Named Agents of Fed. Bureau of Narcotics*, 403 U.S. 388 (1971) (federal prisoners)

2. I assert jurisdiction pursuant to the following additional or alternative statutes (if any):

C. NATURE OF THE CASE

BRIEFLY state the background of your case. If more space is needed to describe the nature of the case, use extra paper to complete this section. The additional allegations regarding the nature of the case should be labeled "C. NATURE OF THE CASE."

The nature of this case, is that the Defendants herein acted with deliberate indifference for years that shocks the contemporary conscience to deny Plaintiff procedural and substantive due process in his liberty interest in participating in the State mandated treatment program that is required for parole and/or consideration for parole.

Also, Plaintiff was deprived of his property without due process because of a misinterpreted policy that denies Plaintiff his constitutional due process rights and he was denied procedural due process in his disciplinary hearing by refusing to call witnesses and destroying evidence in his favor and that officials retaliated against Plaintiff for exercising his right to grieve the government.

D. CAUSE OF ACTION

State concisely every claim that you wish to assert in this action. For each claim, specify the right that allegedly has been violated and state all supporting facts that you consider important, including the date(s) on which the incident(s) occurred, the name(s) of the specific person(s) involved in each claim, and the specific facts that show how each person was involved in each claim. You do not need to cite specific cases to support your claim(s). If additional space is needed to describe any claim or to assert more than three claims, use extra paper to continue that claim or to assert the additional claim(s). The additional pages regarding the cause of action should be labeled "D. CAUSE OF ACTION."

1. Claim One: THE DEFENDANTS DELIBERATELY DENIED PROCEDURAL AND SUBSTANTIAL DUE PROCESS IN INTENTIONALLY DENYING PLAINTIFF ACCESS TO THE SEX OFFENDER TREATMENT and MONITORING PROGRAM [SOTMP].

Supporting Facts:

2. This issue involves the Colorado Department Of Corrections (CDOC), the Parole Board and the Federal Courts; "Finding Of Facts and Conclusion of Law" pursuant to two cases and Agency Regulations, [Administrative Regulation] AR 700-19, in Beebe v. Heil, 333 F.Supp. 1011; and Beebe v. Stommel, 2006 U.S. Dist. Lexis 82668.

3. Plaintiff (Mackey), was in California (Calif.) prison for sex assault when Colorado (Colo.) requested Temporary Custody to stand trial for "First Degree Murder" that happened February 18, 1980, See Exhibit (ex.) 2.

4. Mackey was extradited to Denver, Colo. in September 1984, where he was found guilty by a jury of two counts of first degree murder C.R.S. §18-3-102 for "one" victim on/or about July 23, 1985. See ex. 2/1.

5. At that time the Colorado Sex Offender Act (CSOLSA) of 1968 applied because Mackey had convictions of sex offenses and his Colo. conviction implicated a sexual offense, which was vacated. See ex. 2, 11 & 11-B.

6. The Courts and the CDOC have applied the current statutes and judicial decision retrospectively to all sex offenders regardless of when their conviction occurred pursuant to C.R.S. §17-2-201(5)(a).

7. Thus, under Colo.law, a sex offender is required as part of his sentence to undergo appropriate treatment pursuant to C.R.S. §§18-1.3-1004(3)

CLAIM ONE CONT...

and 16-11.7-106.

8. For a sex offender to be eligible for release on parole, the parole board must consider whether the sex offender has successfully progressed in treatment pursuant to C.R.S. §18-1.3-1006(1)(a).

9. Thus participation in a treatment program is an absolute prerequisite for release on parole, and for a sex offender like Mackey to be eligible, even to be considered, the parole board must assess whether he has successfully progressed in treatment.

10. Mackey has been classified as a sex offender since 1980, and has been applying for treatment since on/or about 1995; see ex. 3,4,10, and made many inquiries into SOTMP, and signed a "Waiting List Contract" with Therapist Patricia Montez in 2007. See ex. 15-18, A to A-3; & B to B-3.

11. In exhibit A to A-3, even though it is the same subject as the step 1 & 2, and the grievance officer has answered on the merits, he claims that it is not exhausted, a favorite reasoning when the subject has merit.

12. In every inquiry that Mackey made to Mental Health, staff denied the request to attend SOTMP, and stating Plaintiff was on a "Global Waiting List", showing a pattern of deliberate indifference, using the same excuse that Mackey is on a list for almost twenty (2) years; Cf to ex. 4, which states that Plaintiff "has a large sentence, low priority", and the parole board is aware of this and ignores it. See also Attachment 5.

13. Mackey was screened for SOTMP, see exhibit 3,4,10, and again on October 15, 2007, see exhibit 17-18, and have wrote numerous grievances to attend SOTMP which was denied. Here at Fremont Correctional Facility (FCF), Plaintiff talked to and grieved "Mr. Lander" of Mental Health, July 15, 2015, and Aug-

CLAIM ONE CONT...

ust 7, 2015; filed an informal grievance to Mental Health to change Plaintiff's code pursuant to AR 700-19, and 750-02. See ex. A.

14. Plaintiff again filed grievances August 25, 2015; talked to Mr. Lander's September 11, 2015, which he replied: Mackey would be Staffed for an "L" code change pursuant to AR 700-19, IV.B.8.; on October 1, 2015, Plaintiff talked to Mr. Lander again with no "real" response, filed a grievance again to Mr. Lander on November 10, 2015; filed a Step 2 grievance pursuant to the "L" code on December 1, 2015; filed a Step 3 grievance on "L" code, No. C-ff15/16-00083400-2; and talked to his Case Manager, Ms. Hackler about SOTMP, on January 7 & 19, 2016, pursuant to the comments from the Parole Board, see ex. 14 & 14(2) and she did nothing!

15. Mackey tried to participate in his reclass to influence Mental Health to reclass him to enter into SOTMP, but was denied participation, violating AR 600-01, IV.,F.K.3.; filed an appeal to again be reclassified that was granted and the appeal decision went ignored by Case Manager Gillis. See ex. 19-20; and sent a letter to "Offender Services with the parole board action. See ex. 14, & 14(2).

16. Petitioner has been to the parole board four (4) times and each time was denied; on two occasions, the board stated "inadequate program"; "Awaiting Program"; "Requesting Program"; see ex. 12 & 13; and on the year deferment of January 4, 2016, stated: "It Is Highly Recommended and EXPECTED that he be given the opportunity for SOTrmt-moved up on wait list." See ex 14.

17. The SOTMP is operated by CDOC and is governed by CDOC's AR 700-19, that establishes the general scope and limits of sex offender services provided to offenders within the CDOC; effective date, September 15, 2003.

CLAIM ONE CONT...

18. Mental Health is also confused on this issue as the answers to grievance No. C-FF15/16-00093383, step 1,2,3, shows; step 1, granted by Ms. Krakow of SOTMP program, but step 2 and 3 is denied by Mr. Woodson from the SOTMP and Mr. Griffith, the step 3 Grievance Officer, even though they are the same, reveals a deliberate scheme to subject Mackey to the [status quo] of denying entry into the program. See ex. B to B-3, & 23.

19. A.R. 700-19, gives the Defendants an "excuse" in denying Plaintiff participation in SOTMP and discriminates against him because he is not convicted pursuant to the SOLSA. See AR 700-19, IV.E.1.a.c.d.e.; 2.a.b.c.d. and e. Also see ex. B-1, response to step 2 grievance giving priority to SOLSA offenders thereby enhancing Plaintiff's sentence because he wasn't convicted pursuant to SOLSA. See also Attachment 5, step 2 answer.

20. AR 700-19, IV.E.1.a., gives priority to persons convicted pursuant to SOLSA rather than persons convicted of the same sex offenses but not under the SOLSA, and it is a denial of "Equal Protection of the laws and/or that is how Defendants are using it. See Attachment 5, step 3 answer.

21. AR 700-19, IV.E.2.a.e., states: "the criteria to participate in SOTMP, which Mackey has complied with since at least 1999, see ex. 3,4,10, 15-18, and 19-20; but because Plaintiff "cannot" comply with part IV.E.1.a., convicted pursuant to C.R.S. §§18-1.3-1004 & 16-11.7-105, SOLSA, he will never be a "Pri-
ority" by applying, and yet not applying this Administrative Regulation, and thus, continuously denying entry into SOTMP which is mandated for parole under the above statutes and C.R.S. §17-2-201(5)(a).

22. Mackey has complied with the rules and regulations governing treatment that meets institutional concerns, and the denial of initial entry into the

CLAIM ONE CONT...

program for over fifteen (15) years does not reasonably relate to any legitimate penological objective and is an exaggerated response to [any] institutional concerns and a pretext to deny entry.

23. This is extreme and certain to increase the duration of confinement because Plaintiff has been eligible for parole since 2013 without any consideration for parole, and each time the parole board has used that as one of the reasons for denial. See ex. 12,14, and 21.

24. Plaintiff alleges that the refusal to enroll him in treatment is unjustified, arbitrary, capricious and pretextual, and he has a protected liberty interest to be considered for parole.

25. It is also plausible that the comments of the parole board has showed a tendency to grant parole if Mackey had completed the program since his "Colorado Acturial Risk Assessment Scale" score is 101, "Very Low Risk." See ex. 12, 13,14,21, and 25.

26. Looking at the exhibits and the ambiguous answers on the grievances and appeals, plus the years of denials for initial enrollment into the program, Mackey knows that this behavior will continue especially if he has complied with AR 700-19, IV.E.1., to the best of his ability to no avail.

27. The established procedures are deficient because it makes those who were actually sentenced under the SOLSA a priority while those who were not, irrelevant, and keeps pushing them to the back of the [so called] "Global Waiting List" without explanation, and is an Equal Protection violation of the Fourteenth Amendment.

28. The Fourteenth Amendment contains a substantive guarantee that protects against conduct by state and local officials that "shock the conscience" or

CLAIM ONE CONT...

"afford[s] brutality the cloak of law." In the prison context, substantive due process rights "are essentially coextensive with Eight Amendment Prohibition against cruel and unusual punishment."

29. To the best of Mackey's knowledge and from his experience, neither the CDOC nor its SOTMP has a practice and/or policy requiring sex offenders to be provided with due process protections to enter the program if the prisoner was not convicted pursuant to the SOLSA, except to put him/her on a "Global Waiting List, which means that he is "indefinitely" waiting, and being discriminated against, per policy.

30. Plaintiff states that Defendant Leonard E. Woodson III, SOTMP Administrator and Dana Krakow, SOTMP Administrator, owed Plaintiff a legal duty to ensure a practice and or policy was instituted within the SOTMP which would provide Plaintiff with due process protections to enter the program.

31. Plaintiff states that Rick Raemisch as Executed Director of CDOC also owed Mackey a legal duty to ensure that a practice and/or policy was in place that would guarantee entry into the state mandated program that did not discriminate against Plaintiff because he was not convicted pursuant to "new" laws and regulations that was not in existence when his crime was committed.

32. Mackey avers that these Defendants failure to institute such practice or policy resulted in deprivation of his substantive due process rights. Also in so doing, these Defendants "acted with deliberate indifference to Mackey's liberty interest in participation in treatment and deprived him of his liberty interest in such a way as to shock the contemporary conscience."

33. The Defendants Woodson, Krakow, and Raemisch at all times were acting under color of state law.

THE DEFENDANTS CUSTOM AND POLICY IN APPLYING AR 700-19 TO
PLAINTIFF WAS UNCONSTITUTIONAL, DENIED SUBSTANTIAL DUE

2. Claim Two: PROCESS TO LIBERTY INTEREST FOR ENTRY INTO SOTMP.

Supporting Facts:

34. Plaintiff incorporates by reference, paragraphs one through thirty-three, as if fully contained herein.

35. Defendant Rick Raemisch as Executive Director is responsible to write, impliment, and delegate his authority pursuant to C.R.S. §17-1-103, to Defendants Woodson and Krakow.

36. CDOC regulation AR 700-19 addresses preconditions and conditions to receipt of sex offender treatment and vest CDOC therapist and personnel with discretion for initial entry into SOTMP.

37. Pursuant to AR 700-19, IV.,E.,1.,a., initial entry is prioritized for inmates convicted under CSOLSA of 1998, C.R.S. §18-1.3-1001.

38. The official policy of Defendants is to deny entry into SOTMP [if] the sex offender was not convicted pursuant to the CSOLSA, refer him to [a] "Global Waiting List" indefinitely, with no structure or means to advance on the list.

39. For instance, a sex offender convicted under the act upon being committed to CDOC, will be admitted to SOTMP within one year to eighteen months, while the inmate that was "not" convicted under the act that's on the [so called] "Global Waiting List" will be pushed to the back of the line indefinitely, even though he has the same or similar sex convictions and has been waiting for initial entry into SOTMP pursuant to AR 700-19, and continuing to be ineligible for parole.

40. This policy/practice or custom has been applied to Plaintiff for fifteen to twenty (15-20) years; Mackey has been classified as a S5-R sex offender upon conviction in 1985 and is purported to be on a "Global Waiting List" for these years up to "today". See Claim One and ex. 3, 4, 10, 12, 13, 14, 15-18, (Rev. 1/30/07)

CLAIM TWO CONT...

A to A-3, B to B-3, 19-20,21,23,25, and also see Attachment 5.

41. Mackey has wrote Director Raemisch to inform him of this problem and he chose to ignore Plaintiff's situation, and he has informed the Defendants through letters, grievances, appeals, and orally. see grievances and appeals attached to this Complaint, see also Affidavit attached to this Complaint.

42. These Defendants have had ample opportunity to deliberate for at least 15 years, instead, they choose to ignore the predicament and show deliberate indifference, knowing that for the past four (4) years of parole hearings "their" actions/inactions made Plaintiff ineligible for parole and hope in vein and increased his sentence pursuant to the sex offender statutes.

43. The Courts have found that there is no distinction between termination from a program and denial of entry into a program-in either instance the inmate required to undergo treatment is deprived of treatment, therefore a denial of substantive due process.

44. AR 700-19, does not address the sex offender that has not been convicted pursuant to the CSOLSA, there is no Due Process to include the inmate in the procedure to initially enroll him as he would be if he was convicted under C.R.S. §18-1.3-1001, except to sideline him for years at the "whim" of a staff member.

45. AR 700-19, denies Plaintiff Due Process and Equal Protection of the law and is Ex Post Facto for Mackey and inmates like him that are similarly situated and for those reasons it should be declared unconstitutional.

PLAINTIFF'S ASSIGNED CASE MANAGERS VIOLATED HIS PROCED-
URAL AND SUBSTANTIAL DUE PROCESS RIGHTS TO HIS LIBERTY
INTEREST.

3. Claim Three: _____

Supporting Facts:

46. Plaintiff incorporates by reference, paragraphs one through forty-five as if fully contained herein.

47. Since Mackey's arrival at the Fremont Correctional Facility (FCF) he has been vigorously applying and advocating for enrollment in SOTMP.

48. The Case Manager, Ms. Hackler, was deliberately indifferent to Plaintiff's position for SOTMP and refused to contact or advocate for him and left it up to him to advocate for himself with no power to do so.

49. In March 2016, before the scheduled classification, Plaintiff notified Case Manager Hackler (no longer at FCF), that he wanted to participate in his classification to try and influence his chances to participate in SOTMP pursuant to AR 600-01.

50. When Ms. Hackler proceeded with the Classification, she ignored Mackey's request deliberately and did it without his input, because the day before it was scheduled, Plaintiff was assured by her he would be called in.

51. As a result, Ms. Hackler denied Mackey his First Amendment right to free speech, Fourteenth Amendment right to Procedural Due Process to his liberty interest.

52. On April 3, 2016, Mackey filed an appeal for being eliminated from his classification, see ex. 19, and the Associate Warden, Jacqueline McCall granted the appeal on May 25, 2016, and stated Mackey would be reclassified. See ex. 20.

53. During this time period, Ms. Hackley left FCF for another assignment and Case manager Cheryl Gillis was assigned as Plaintiff's case manager.

54. After introduction to Ms. Gillis, Plaintiff discussed his classificat-

CLAIM THREE CONT...

ion and gave her a copy of ex. 20, which she acknowledged and stated he would be reclassified, but ignored.

55. As time went on Plaintiff inquired into the classification and SOTMP, with either a negative answer or just ignored.

Plaintiff was to have a parole hearing sometime in January 2017, and have a parole plan submitted "before" the hearing pursuant to C.R.S. §17-22.5-404 (a)(VI), instead, Ms. Gillis never notified Plaintiff to/or submit a parole plan or even find out if he had any changes or let him apply for community corrections or a halfway house, thereby denying Equal Protection and Procedural Due Process to his liberty interest.

56. On January 6, 2017, filed a grievance on Case Manager Gillis and an appeal on his parole hearing; and asked that he be removed from her case load for disparity in treatment compared to other inmates in her care and another parole hearing that had notification and was fair.

57. On January 12, 2017, Mackey submitted another appeal, to be sure, specifically asking for another parole hearing, due to the case manager not following procedure.

58. Plaintiff had submitted the step 1 grievance to Case Manager Buchanan on January 6, 2017, and when no answer came, he submitted a step 2, according to AR 850-04, IV.,F.ē.

59. Instead of Ms. Buchanan, submitting the step 2, she changed the step 2 into a step 1, and submit it, stating she could not find a record of it, in violation of AR 850-04, IV.,F.,e,, b.; thereby violating the grievance procedure and AR 1450-01 IV.,A.J.M.HH.; effectively indicating that Mackey had exhausted that particular grievance. See Step 1-2 combined, See exhibit 24.

CLAME THREE CONT...

60. Plaintiff's private interest was the exhaustion of his grievance and is a prelude to a civil rights suit and Mackey has a liberty interest in being considered for parole; if the case manager is ignoring my request for her to help Plaintiff enroll in a state mandated program, see Claim One, then there is the possibility if she is following AR 1450-01, IV.,A.,J.,M., & HH., that her superiors made clear to her that is a moot situation and it is no need to file a parole plan on Mackey's behalf.

61. Mackey knows that he will not receive even a consideration for parole if his case manager never submits an application for enrollment into SOTMP and his interest in being fairly classified is to his advantage in the consideration for parole that has [no] implications on the safety of other inmates and personnel.

62. Plaintiff had an opportunity to respond via an appeal, won that appeal, but the case managers still refuse to abide by the remedy of the Associate Warden, that shows deliberate indifference, and denial of Procedural and Substantial Due Process that "shocks the conscience." The Defendant was acting according to policy that was commonly practiced by most/all case managers regardless and contrary to AR 600-01.

SGT. WATSON HARASSED AND RETALIATED AGAINST PLAINTIFF
FOR EXERCISING HIS RIGHT TO GRIEVE/COMPLAIN HER ACTIONS
THEREBY VIOLATING THE FIRST AMENDMENT TO THE U.S. CONS-

CLAIM FOUR: TITUTION AND PUTTING HIM IN IMMINENT PHYSICAL DANGER.

Supporting facts:

63. In the week of February (Feb.) 12th to 18th, 2017, Plaintiff's cell mate, Rodney Fogland, had an altercation with correctional officer (c/o) Witte, where he had called her some "names."

64. On the evening of the Feb. 17, 2017, c/o Wood began a search of "our" cell, and Plaintiff promptly explained to him that just a few days ago c/o Smith "shook down" the cell, and showed him the shakedown slip.

65. C/O Wood then explained that my cell mate had been disrespectful to c/o Witte and "he can't be doing that", finished searching and began to look for Foglang. C/O Wood was most respectful in handling my property.

66. The next morning Feb. 18, 2017, Sgt. Watson came to my cell stating she "had a call to shakedown the cell", and I explained to her that c/o Wood shook the cell down last night and c/o Smith did it a few days before c/o Wood and I had no dangerous items in the cell.

67. I complained to her that this was harassment and I had nothing to do with disrespecting c/o Witte, which she replied, "then get another cellie", as to pit myself against Fogland, #119003.

68. I then went to control and asked the officer to get the "shift commander" because I was being harassed for something I knew nothing about and I wanted to make a formal complaint, which I did by first filing an informal and a step 1, grievance plus a "DOC Employee/Contract Worker Conduct Complaint for harassment and Retaliation; that Mackey never heard from again. See complaint and grievance. ex.26&27.

69. Because I complained, Sgt. Watson began to confiscate my property which in-

CLAIM FOUR CONT...

cluded my prescription eyeglasses, which she listed as "contraband" listing them as "3 excess RX glasses.

70. Plaintiff's glasses was clearly marked on his property list as "metal framed tinted glasses" and Sgt. Watson saw Plaintiff wearing the glasses everyday because she was his work supervisor. See ex. 29.

71. Sgt. Watson does shakedowns often enough to know the rules concerning inmate property and she deliberately targeted Plaintiff's glasses and property because he complained, and the glasses was on the desk "in use" when Sgt. Watson became angry because he questioned her and told him to leave the cell.

72. AR 850-06, IV.,D.,1., states: "health appliances should not be included in volume limit for property", therefore her listing "3 excess eyeglasses" is not a contraband issue; also AR 300-06, IV., Searches and Contraband Control, states: Medical assistive devices (glasses) should be taken to medical, which she did not do because weeks after the incident, it took my relatives and friends to call the Warden's Office here at FCF and the "Constituent Services Coordinator, Lisa M. Sanchez, at CDC in Colorado Springs to get my glasses back, as I was in the process of legal litigation at this time and could not see to work.

73. Sgt. Watson, for instance, stated that because Plaintiff sewed his property, (socks, coat, & sweatshirt), indicated that it has been altered to be used as something other than it was intended for. See AR 850-06, III, E.

74. Plaintiff sewed up holes in his clothes or when they stretched out and used them for what they were intended for; and if staff didn't intend for an inmate to sew his clothes, then why would the canteen sell sewing kits?; if not to repair one's clothes; Watson is using policy as punishment rather than the AR.

75. Also showing the vindictiveness of Sgt. Watson, she listed my socks as al-

CLAIM FOUR CONT...

tered, both state and conteen bought socks, but only confiscated Plaintiff's personal canteen socks and returned the state socks to Plaintiff.

76. Plaintiff uses two pair of glasses, one for indoors and one for outdoors, and the outdoor glasses were purchased by Plaintiff's wife from an "outside vendor, Lens Crafters."

77. These prescription is bifocal and has polarized lens for brightness as to see in the daylight as Plaintiff has developed a cataract in his elderly years and the cost of these glasses were approximately \$400.00

78. After the confiscation of Plaintiff's glasses, his vision deteriorated and he had severe headaches that lasted for over twenty-four hours, that are debilitating and incapacitating, day after day.

79. a. THE OFFICIAL POLICY AND CUSTOM THAT SGT. WATSON PRACTICED CAUSED HER TO CONFISCATE PLAINTIFF'S PROPERTY WITH DELIBERATE INDIFFERENCE THAT DENIED PROCEDURAL AND SUBSTANTIVE DUE PROCESS OF THE FOURTEENTH AMENDMENT, AND THE POLICY IMPINGED ON MACKEY'S RIGHTS.

80. Plaintiff incorporates by reference paragraphs 63 through 78 as if fully contained herein.

Supporting facts:

81. The Posted Operation Rule (POR) in essence states: to alter an object, is to change it to something other than what it was intended for.

82. Sgt. Watson and other staff has skewed this POR to the extent as to use it as a weapon to take inmates property without cause and without checks and balances as confirmed by her supervisors Lt. Hawkins and Captain Hernandez to approve her actions without consequences. See ex. 26 & 28.

83. Sgt. Watson was personally involved and liable when she directly participated in the constitutional violation of Due Process; Sgt. Watson knew that CD-

CLAIM FOUR CONT...

OC, through the canteen "sold" sewing kits and noted that Plaintiff had an "extra" sewing kit in his property, and knew or should have known sewing kits were used to "sew clothes" and by confiscating the "clothes" that were [authorized] to be repaired/sewed, by custom/policy, Sgt. Watson continued to practice unconstitutional violations of Due Process of the Fourteenth Amendment; Sgt. Watson instructed her subordinates to participate in these wrongful acts; Sgt. Watson exhibited deliberate indifference to the rights of Plaintiff and other inmates by failing to act once she was informed (by grievance) on information indicating that unconstitutional acts were occurring, instead Sgt. Watson "dug her heels in" to cover up the retaliation, and her superiors "backed her up." See grievance answers ex. 26, 28 , and shakedown slip. 29 .

84. The P.O.R. itself, on Altered material does not authorize the Defendant to confiscate an item unless it is altered in such a way as to be used for something it was not intended for. See AR 850-06, III, Definitions, E.

85. Plaintiff alleges that not only did Sgt. Watson violate her own policy, she accomplished this in retaliation, because Plaintiff was engaged in protected conduct in complaining; an adverse action was taken against him in the confiscation of his property and placed in segregation and there is a causal connection between elements one and two—that is, the adverse action was motivated by at least in part by plaintiff's protected conducted. (which is complaining).

86. b. SGT. WATSON'S ACTION PUT PLAINTIFF, INMATE FOGLAND AND TYME,
IN IMMINENT DANGER.

87. Plaintiff was informed that his cell mate Fogland, had an issue with c/o Witte the evening of Feb. 17, 2017, when c/o Wood informed him of Fogland's issue with c/o Witte and shook down "our" cell, because Wood informed him of

CLAIM FOUR b. CONT...

the reason and he was most respectful in the handling of Plaintiff's property, and personally went to talk to Fogland face to face.

88. Sgt. Watson "on the other had", tried to give Mackey a reason to be angry at Fogland and transfer the [punishment] personally from staff to Plaintiff.

89. Once Mackey went to segregation and moved to another building, inmate Justin Tyme was moved to Plaintiff's former cell with Fogland, and was harassed by staff with a shake down of the cell at least five days in a row in which his T.V. was damaged in the process of retaliating against Fogland.

90. Inmate Tyme was angry at Fogland until he realized that it was Sgt. Watson that was retaliating against Fogland and she was trying to manipulate him into punishing Fogland for her friend c/o Witte.

91. Sgt. Watson deliberately put [us] in danger to show her power over us, and this lead to the firing of Plaintiff from his job of over ten (10) years as an Offender Care Aid (OCA) III, and placed in the kitchen, that lead to the contact and "complaint" with the Constituent Services Coordinator in Colorado Springs CDC headquaters, which lead to the reinstatement of Mackey's OCA job, but staff here decided to pay Plaintiff at a lower rate of pay, and all for complaining.

THE DEFENDANT'S DENIED PROCEDURAL AND SUBSTANTIVE DUE
PROCESS BY NOT ALLOWING EVIDENCE AND WITNESS IN FAVOR OF
CLAIM FIVE: PLAINTIFF

Supporting facts:

92. Plaintiff incorporates by reference paragraphs 63 through 91 as if fully contained herein.

93. On Feb. 18, 2017, as stated, after requesting to see the shift commander, Lt. Weaver was called instead, so Plaintiff explained to him that Sgt. Watson was harassing and retaliating against him for his cell mates actions.

94. After Mackey realized that Lt. Weaver would not intervene, so rather than have a confrontation, Plaintiff went to segregation because he felt like it was the only solution to the problem.

95. Mackey stayed four days in segregation and filed several grievances and a formal complaint against Sgt. Watson for harassment and retaliation, seventeen days later after my written complaints she decided to file a report against Plaintiff for threats without actually conveying what that threat was, according to the report [be specific] as it is wrote up in the Code Of Penal Discipline (COPD): "Place another in fear of bodily injury."

96. Sgt. Watson stated she was in fear of bodily injury, but at no time did she call for assistance, as she had a radio, and within seconds could of had "many" officers at the scene.

97. Mackey went to segregation on Feb. 18, 2017, released on Feb. 22, 2017, and notified of vague charges on March 7, 2017, and the hearing was held March 9, 2017, in which Sgt. Watson testified by phone that Plaintiff did not follow her orders to leave the cell, then complied; but entered the cell again, threatened her, pointed his finger at her and called her a bitch while leaving. See ex. 30 & 31.

CLAIM FIVE CONT...

98. Plaintiff stated she was lying and asked for the video to prove exactly what happened, but the Defendant hearing officer, Lt. Susan Prieto, stated that the video was taped over and Mackey should have asked for it within three (3) days of the incident.

99. First, Mackey was in segregation three days after the incident and second Plaintiff had no idea that it would be charges of any kind until two days before the hearing on the 17th day, after the video was conveniently taped over, especially if the charges were false.

100. The Defendant Prieto, would not allow Plaintiff's witnesses, stating they were irrelevant to the charge even though Mackey's defense was retaliation and anything done in retaliation was illegal. See claim four.

101. Plaintiff had a right to present evidence and call witnesses in his defense that the motivation for the report against him was based on his cell mate's action and when he spoke up against the harassment and retaliation, that the cell was searched three times within 10 days, and five days in a row after Plaintiff went to segregation and the new cell mate was also harassed.

102. Plaintiff in this case, did not know, that complaining was prohibited and that an inmate could actually be punished for it and/or a vague regulation or a charge that wasn't specific, or a regulation that is written one way but interpreted another as in this case.

103. The Defendant S. Prieto denied Mackey Due process at his hearing by not allowing evidence and witnesses and/or showing prejudice by accepting vague testimony of Sgt. Watson over Plaintiff's. See ex. 32.

Original form provided free of Charge by CO DOC Legal Services to

Offender Moskey DOC# 52262

Date JAN 17 2017

E. PREVIOUS LAWSUITS

Have you ever filed a lawsuit, other than this lawsuit, in any federal or state court while you were incarcerated? ☒ Yes ☐ No (CHECK ONE). If your answer is "Yes," complete this section of the form. If you have filed more than one lawsuit in the past, use extra paper to provide the necessary information for each additional lawsuit. The information about additional lawsuits should be labeled "E. PREVIOUS LAWSUITS."

1. Name(s) of defendant(s) in prior lawsuit:

Unknown

2. Docket number and court name:

Unknown

3. Claims raised in prior lawsuit:

Unknown

4. Disposition of prior lawsuit (for example, is the prior lawsuit still pending? Was it dismissed?):

Dismissed

5. If the prior lawsuit was dismissed, when was it dismissed and why?

Failed to state a claim upon relief could be granted

6. Result(s) of any appeal in the prior lawsuit:

None

F. ADMINISTRATIVE RELIEF

1. Is there a formal grievance procedure at the institution in which you are confined?

☒ Yes ☐ No (CHECK ONE).

2. Did you exhaust available administrative remedies? ☒ Yes ☐ No (CHECK ONE).

Original form provided free of Charge by CO DOC Legal Services to

Offender Mackey DOC# 82262

Date JAN 17 2017

G. REQUEST FOR RELIEF

State the relief you are requesting. If you need more space to complete this section, use extra paper. The additional requests for relief should be labeled "G. REQUEST FOR RELIEF."

Wherefore Plaintiff respectfully pray that this court enter judgment granting

Plaintiff:

1. A declaratory judgment that the defendants acts, policies and practices described herein violates Plaintiff's rights under the United States Constitution.
2. A declaratory judgment that states that the Defendants declare that because of the time that has passed, Plaintiff be considered completed the SOTMP.
3. A declaratory judgment declaring AR 700-19 Unconstitutional for Offenders not convicted under the Colorado Lifetime Supervision Act.
4. A declaratory judgment declaring that the "Global Waiting List" is a sham and a pretext to keep inmates waiting indefinitely.
5. A preliminary and permanent injunction which:

G. Request For Relief Cont...

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury that I am the plaintiff in this action, that I have read this complaint, and that the information in this complaint is true and correct. *See* 28 U.S.C. § 1746; 18 U.S.C. § 1621.

Executed on May 31, 2017
(Date)

Waldo Mackey
(Prisoner's Original Signature)

G. REQUEST FOR RELIEF CONT...

would require the coordinators of SOTMP to consider that Plaintiff completed the program as a sanction for the impermissible wait.

6. A repeal of AR 700-19, by Executive Director Rick Raemisch, for all offenders who were not sentenced under the Lifetime Supervision Act, and immediate entry into SOTMP for those who meet the criteria.

7. A declaratory judgment and an injunction that the policy practiced by Sgt. Watson concerning altered material is contrary to AR 850-06, III, E. and to cease and desist of the practice of this policy.

8. A declaratory judgement to expunge the COPD conviction imposed by Defendant Prieto for denial and lack of Due Process in obtaining the conviction.

9. A declaratory judgment against Defendant Watson for retaliation against Plaintiff in the way of a COPD report to stop those practices.

10. Punitive damages in the amount of \$50,000.00 from Defendants L. Woodson, and D. Krakow, and each of them to Plaintiff and each of them.

11. Punitive damages in the amount of \$25,000.00 from Defendants M. Hackler, and C. Gillis, and each of them to Plaintiff and each of them.

12. Punitive damages in the amount of \$75,000.00 from the Defendants B. Watson and S. Prieto, and each of them to Plaintiff and each of them.

13. Attorney fees if an attorney is assigned to this case.

14. A jury trial on all issues triable by jury.

15. Plaintiff's cost of this suit.

16. Such other and further relief as this court deems just, and proper and equitable.

RESPECTFULLY SUBMITTED

Waldo Mackey

VERIFICATION

I have read the foregoing Complaint and hereby verify that the matters alleged therein are true, except as to matters alleged on information and belief, and as to those, I believe to be true. I certify under penalty of perjury that the foregoing is true and correct.

Waldo Mackey